

Consent (97.0%), Data Controller (96.9%), Legitimate Interest (62.6%), Personal Data (86.3%), Processing (98.1%), Required Purpose (95.2%), Right (70.7%), Technical Measure (98.4%):

Privacy Policy

GiftYa Send Received How it works Buy in Bulk Featured Brands Shop featured brands!

Data Controller (98.7%), Personal Data (80.2%), Processing (99.8%), Required Purpose (88.7%), Retention (80.7%), Third Party (89.5%):

Call (866) 352-9437 Text (412) 912-4641 Help Get Help 24/7 Help Log In 0Cart Privacy Policy
Effective Date: March, 2024 This Privacy Statement applies to information that GiftYa, LLC, on behalf of itself and its corporate affiliates (collectively GiftYa, we or us) collects on www.GiftYa.com and other websites, applications, and digital services (collectively, the Site) on or to which this Privacy Statement is linked or referenced (collectively, the Services).

Data Source (62.2%), Data Subject (90.0%), Legitimate Interest (60.9%):

This GiftYa Privacy Statement (Privacy Statement) describes the information we collect, why we collect it, and what we do with the information we collect from or about you through the Services.

Data Source (76.8%), Non-Personal Data (66.7%), Organisational Measure (95.1%), Personal Data (97.8%), Processing (82.6%), Required Purpose (97.3%), Retention (94.3%), Technical Measure (97.7%):

Shop Now National brands Best Buy Amazon Dunkin' Sephora Target DoorDash Chipotle Visa Home Depot Google Play View all Recently added Apple Publix Bass Pro Shops Cabela's American Airlines T.J.

Processing (99.4%), Required Purpose (80.5%), Third Party (62.2%):

This Privacy Statement does not apply to third-party websites and other digital services linked to the Services or information collected from you off line.

Consent (67.2%), Personal Data (79.7%), Third Party (75.7%):

residents and who are the age of majority or older in their place of residence (age 21 in Mississippi, age 19 in Alabama and Nebraska and age 18 in other states and Washington, D.C.), and (2) authorized representatives of duly formed businesses and associations (Entities).

Consent (83.9%), Data Controller (90.4%), Legal Basis (86.6%), Organisational Measure (83.9%), Personal Data (80.1%), Processing (98.1%), Recipient (64.6%), Required Purpose (98.3%), Retention (65.0%), Right (64.7%):

Maxx Uber ULTA Beauty Sheetz Texas Roadhouse View all Occasions Father's Day Graduation Gifts for Him Congrats Birthday Thank You Gifts for Her Travel Baby Anniversary View all View all merchants Search ?Help Center How do I use a GiftYa?

Data Source (85.2%), Personal Data (99.7%), Processing (92.2%), Required Purpose (94.8%), Right (72.5%):

Summary For your convenience, we have summarized several of the most important points in this Privacy Statement, which are: We collect and use your personal information, information from your devices contact list, and access to financial institution information in order to provide services to you.

Data Controller (96.2%), Processing (98.7%):

This Privacy Statement is incorporated into and made a part of the GiftYa Website Terms of Use (Terms of Use) and the customer Terms of Service (Terms of Service).

Legal Basis (88.4%), Legitimate Interest (84.1%), Personal Data (99.6%), Processing (94.9%), Required Purpose (85.3%):

We also use your personal information for our own legitimate and lawful business interests, including (but not limited to): improving our websites and services, communicating information about our services through direct advertising (such as email) and indirect advertising (such as ads appearing on other websites), conducting fraud detection and prevention activities, maintaining records and communicating notices that are required by law.

Art. 17 Right to erasure (right to be forgotten) (80.9%), Contract (72.9%), Processing (98.9%), Recipient (64.4%), Required Purpose (86.0%):

We may share your information with the service providers needed to deliver our services to you, but those service providers are bound by law and contract to only use your information for the purposes we specify.

Personal Data (92.3%):

We do not sell your information.

Legal Basis (96.8%), Right (96.5%):

Data protection laws in your jurisdiction may provide you with rights to access or delete your personal information and this policy provides you with instructions on how we do this.

Processing (99.3%), Required Purpose (82.1%), Right (79.8%), Scale Non-EU (87.3%):

For example, if you are a resident of the State of California in the United States, laws in those jurisdictions grant you specific rights that are discussed below in the section called Your Rights. You are strongly encouraged to read this Privacy Statement in its entirety, not just the above highlights, to best ensure your full understanding.

Personal Data (99.8%), Required Purpose (98.0%):

Personal Information We Collect (Including Information from Your Devices Contact List) For purposes of this Privacy Statement, Personal Information means any information that identifies,

relates to, describes, references, is capable of being associated with, or could reasonably be linked, directly or indirectly, with a specific person.

Non-Personal Data (73.6%), Personal Data (99.3%), Processing (98.3%):

Personal information does not include publicly available information from government records or de-identified or aggregated information.

Personal Data (98.7%), Required Purpose (95.3%):

To provide you with the Services, and depending on how and why you use the Services, we collect:

When You Give GiftYa Information: When you create an account, we ask you for Personal Information including but not necessarily limited to your name, birth date, email address, telephone number, and credit card number and associated card security code.

Non-Personal Data (76.9%), Personal Data (98.9%):

Certain parts of the Services require users to provide contact information (such as name and e-mail address), demographic information (such as ZIP code), financial information (such as credit card number and/or bank account and routing code) and other similar information.

Data Source (81.1%), Personal Data (65.5%):

If you sign up for emails about GiftYas latest news and new products, we collect the email address that you give us.

Personal Data (66.7%):

We also collect feedback, questions, and information that you provide to us for customer support.

Personal Data (81.8%), Required Purpose (97.1%):

When We Ask You for Contact List Information: Certain parts of the Services also ask (but do not require) you to provide us with access to information from your Contact List, including a persons contact name, phone number, and email address, to facilitate provision and delivery of the Services from you to that person.

Consent (87.1%):

If you do not agree with any part of this Privacy Statement, our Terms of Use, or, if applicable, our Terms of Service, then please do not use www.GiftYa.com.

Consent (65.2%), Required Purpose (91.9%), Third Party (97.9%):

Where you agree to provide us with access to a persons information, and where application troubleshooting is necessary or appropriate in connection with the provisions and delivery of the Services from you to that person, we may send the persons information to third party services who assist us in troubleshooting.

Processing (96.7%), Technical Measure (90.6%):

This Privacy Statement covers your personal information whether provided via website and/or mobile application as well as any information you might provide to us when you call, email, or send postal mail to our Customer Service.

Personal Data (70.8%), Processing (91.7%), Required Purpose (87.4%), Right (90.3%):

When You Provide Access to Financial Institution Information: When you create an account, we may require that, through our integration with a third party service provider, you connect us to your bank account and/or other financial institution accounts and supply (i) information to access your account and (ii) authority to act on your behalf to access and transmit information from your account(s).

Data Controller (79.9%):

Your privacy is important to us.

Personal Data (88.2%), Processing (94.9%):

You agree to our service providers Privacy Policies and you agree that your financial institution account information will be treated in accordance with its Privacy Policy.

Processing (99.1%):

You are not authorized to access and use the Services if you are located outside the U.S., or are younger than the age of majority, or are not an authorized representative of an Entity.

Personal Data (94.4%), Required Purpose (95.0%):

Our Service Providers Collection and Use of Information: Our service providers access and use your personal and financial institution account information as described in their Privacy Policies and as reasonably necessary to help to provide you with the Services.

Right (89.2%):

You agree that our service providers have the right, power and authority to access and transmit your information as described in their Privacy Policies and as reasonably necessary to help to provide you with the Services.

Legal Basis (86.0%), Non-Personal Data (92.8%), Personal Data (99.6%), Processing (98.9%), Required Purpose (74.4%):

Additional Information (to the extent not covered above): Contact information, such as name, email address, mailing address, fax or phone number; Payment and financial information, such as credit or other payment card information, bank account, or billing address; Shipping address and related details; Your resume, employment and education history, name and contact details, background details, and references when you apply to job postings or contact us about employment opportunities; Company and employment information when you contact us on behalf of your employer/business or when your employer/business uses one of our services; Subject to applicable

local law restrictions, Social Security Number and/or tax ID number (again, when you contact us on behalf of your employer/business or your employer/business uses one of our services; Unique identifiers such as username, account number, or password; Preference information such as product wish lists, order history, or marketing preferences; Information about your employer/business such as company name, size, or business type; and Demographic information, such as when you provide your age, gender, interests and ZIP or postal code.

Art. 15 Right to access by the data subject (73.6%), Non-Personal Data (64.8%), Personal Data (88.4%), Required Purpose (92.0%):

Cancel order / refund Sent GiftYa to wrong email / phone Recipient did not get the GiftYa Visit Help CenterStill need help?

Required Purpose (95.6%), Retention (84.4%):

You authorize your wireless/mobile carrier to use or disclose information about your account and your wireless device, if available, to GiftYa or its service providers (including, Mobile Network Operators) for the duration of your business relationship, solely to help them identify you or your wireless device and to prevent fraud.

Non-Personal Data (64.2%):

When You Use the Services: Through Server Logs: A server log is a list of the activities that a server performs.

Automated Decision Making (96.1%), Non-Personal Data (84.7%), Personal Data (97.6%), Processing (99.2%), Technical Measure (96.4%):

GiftYas servers automatically collect and store in server logs, your search queries, Internet Protocol (IP) address, the date and time of your request and referral URL, and certain cookies that identify your browser or GiftYa account.

Non-Personal Data (95.5%):

From Your Computer, Tablet or Mobile Telephone: We may collect information about your computer, tablet or mobile telephone (Device), such as model, operating system version, mobile network information, telephone number, internet service provider and similar identifiers.

Data Source (77.1%), Personal Data (97.0%):

We may collect data about the location of the Device that you use to access the Services (Location Data) using IP address, GPS, cellular towers and other information from your mobile service provider, Bluetooth address, Wi-Fi access points and information made available by you or others that indicates the current or prior location of the user, such as geotag information in photographs.

PAD (100.0%), Personal Data (72.8%):

Wheres my credit?

Non-Personal Data (88.9%), Personal Data (67.4%), Processing (97.9%):

Through Mobile Applications (Apps): We may from time to time collect information about your use of and interaction with the App, such as your Devices operating system, browser type, domain and other system settings, search queries, the country and time zone in which your Device is located, metadata and other information associated with files stored on your Device.

Technical Measure (98.3%):

Through Cookies and Similar Tools: We use cookies, pixel tags (also known as web beacons, flash cookies and clear GIFs) and similar technology to automatically collect information about you when you use the Services.

Data Source (83.8%), Processing (70.8%):

When you are logged into your social media account and access the Services, we may (depending on your settings) automatically receive information (including Personal Information) from the social media platform.

Processing (99.3%):

Please remember that the manner in which a social media platform uses, stores and discloses your information is governed by the terms and policies applicable to your use of such platforms, and GiftYa has no liability or responsibility for the privacy practices or other actions of any social media platform with which you connect through the App or Services.

Processing (97.0%), Third Party (97.7%):

From Third Parties: GiftYa may from time to time supplement the information that we collect from you with information from third parties.

Processing (96.5%):

We may combine the third-party information with information that we already have from or about you.

Third Party (98.1%):

Through Service Providers: Third parties that assist us with our business operations also collect and use information (including Personal Information) through the Services and also may share the collected information with us.

Required Purpose (99.5%):

For example, our service providers collect and share information with us to analyze the performance of the Services and detect and prevent fraud.

Personal Data (84.6%):

GiftYa uses your Personal Information as described in this Privacy Statement and for any other purpose that we disclose when we collect your Personal Information.

Contract (69.2%), Legal Basis (99.4%), Required Purpose (98.5%):

GiftYa uses Personal Information to: Identify you when you access and use the Services and personalize your experience of the Services; Respond to your inquiries and fulfill your requests for information, products or services; verify your identity; Deliver advertisements and marketing communications to you; help us understand the types of products and services that interest you and present you with offers for them; Provide you with important notices about our products and policies or other administrative information; Evaluate your eligibility for products or services; Conduct data analysis, identify usage trends and determine the effectiveness of promotional campaigns; Develop and improve the Services and our products and services; Detect and prevent fraud; Comply with applicable laws and regulations and legal process and law enforcement requirements; Enforce the Terms of Use, Terms of Service, and our other contracts with you; and Where necessary to the administration of our general business, accounting, recordkeeping and legal functions.

Authority (88.5%), Personal Data (99.3%), Recipient (73.0%), Required Purpose (98.4%), Third Party (83.5%):

Notwithstanding anything to the contrary in the Terms or Privacy Policy, GiftYa and its third party service providers will use transaction information solely as follows: Use transaction data to confirm a qualifying purchase or return to match transactions to confirm whether you qualify for a statement credit or a card-linked promotion, reward, incentive, or offer); Share transaction data with the participating merchant where a transaction occurred as needed for the merchant to confirm a specific transaction occurred or points should be awarded; for example, the date and amount of your purchase and the last 4 digits of your card number so the merchant can verify your purchase with its records if there is a missing or disputed transaction; Provide participating merchants or third party service providers aggregated and anonymized information relating specifically to registered card activity solely to allow participating merchants and third party service providers to assess the results of their campaign; Create a record of the transaction data and thereafter maintain and use data in connection with operating the program; Conduct analysis for the improvement and optimization of the Program; and Provide information in order to respond to a request from government authority or a payment organization involved in a transaction with you or a merchant.

Processing (98.8%), Third Party (79.2%):

You authorize the sharing, exchange and use of transaction data described above and herein by and among GiftYa and GiftYas third party service providers, applicable payment card networks and

applicable merchants.

Retention (72.8%):

However, if you disconnect your Connected Card, you will not be able to use the Services.

Retention (91.7%):

You give us the right to use the transaction data from your Connected Cards until the transactions relating to the Services have been fully completed, or until you remove your Connected Card from the Services.

Legal Basis (86.9%), Processing (89.6%), Retention (87.1%):

When you remove a Connected Card from the Services, we will no longer capture transaction data, however we will retain the data associated with your Connected Cards for historical transactions as long as necessary to fully complete such historical transactions, but no longer than permitted by law.

Required Purpose (97.2%), Right (60.2%):

We, or our service providers, may combine this information with other information, including personal information we collect about you, to record your preferences, gather information about the use of our Services, identify when our emails are viewed, personalize content and ads and track information about the performance of our advertisements.

Processing (77.3%), Technical Measure (88.7%):

Web Beacons: A web beacon (also called a pixel tag or clear GIF) is computer code that communicates information from your device to a server.

Personal Data (78.7%), Technical Measure (81.9%):

Some of our content and emails may contain embedded web beacons that allow a server to read certain types of information from your Device, allow us to count the number of people who have viewed content, to know when you opened an email message, and the IP address of your Device.

Required Purpose (93.7%), Technical Measure (88.3%):

Web beacons help us develop statistical information to provide better and more personalized content.

Non-Personal Data (60.0%), Personal Data (83.4%):

A cookie typically contains the name of the domain (internet location) from which the cookie originated, the lifetime of the cookie (i.e., when it expires), and a randomly generated unique number or similar identifier.

Non-Personal Data (85.6%):

A cookie also may contain information about your Device, such as user settings, browsing history, and activities conducted while using the Services.

Required Purpose (91.2%):

GiftYa uses the following types of cookies: Strictly necessary cookies, which are required for the operation of the Services.

Required Purpose (97.5%), Technical Measure (69.1%):

Analytical/performance cookies, which allow GiftYa to recognize and count the number of visitors, learn how visitors navigate the Services, and improve the Services.

Required Purpose (69.6%):

Functionality cookies, which GiftYa uses to recognize you when you return to the Services.

Personal Data (71.3%):

Targeting cookies, which record your visits to the Services, the pages you visited, and the links you followed.

Processing (99.7%):

GiftYa also shares information collected through targeting cookies with third parties that send you targeted advertisements.

Third Party (82.1%):

From Other Sources: GiftYa collects information about you from third parties: When you Connect with Social Media through the Services: The Services link to social media platforms through plug-ins (e.g., Twitter and LinkedIn buttons).

Non-Personal Data (91.6%), Personal Data (61.6%):

Data Collection Tools record how long you spend on various webpages, which webpages you view, your search queries, the products you viewed, error and performance reports, your IP address, your browser type, time zone and language settings and operating system.

Required Purpose (85.7%):

Data Collection Tools also help us with fraud prevention and detection.

Technical Measure (98.1%):

GiftYa also may use analytics services, such as Google Analytics, to collect information.

Organisational Measure (61.3%):

Your Control of Data Collection Technology: Some web and mobile browsers provide settings that allow you to control or reject cookies or to alert you when a cookie is stored in your browser.

Organisational Measure (74.9%), Technical Measure (83.6%):

You also may be able to reject use of mobile device identifiers by activating the appropriate setting on your Device.

Processing (92.8%):

If a website that responds to a particular DNT signal receives the DNT signal, the browser can block that website from collecting certain information about the browser's user.

Third Party (83.0%):

For this reason, many website operators, including GiftYa, do not respond to DNT signals.

Required Purpose (76.1%):

Service Providers: GiftYa shares information with GiftYa's third-party service providers that help us operate the Services, provide GiftYa products, and personalize your experience on the Services.

Required Purpose (90.3%):

Some service providers help us with payment processing, facilitating payments, sending emails, order fulfillment, conducting advertising, providing customer service or product support, industry benchmarking, consumer analysis, market research, and administering promotions.

Processing (96.2%):

Corporate Transactions: GiftYa may share and transfer Personal Information if GiftYa is involved in a merger, sale, acquisition, divestiture, restructuring, reorganization, dissolution, bankruptcy, or other change of ownership or control by GiftYa or any affiliated company (in each case, whether in whole or in part).

Required Purpose (99.2%):

Other Lawful Disclosures: GiftYa also shares information: (i) as permitted by law; (ii) if we determine that disclosure of specific information is necessary to comply with the request of a law enforcement or regulatory agency or other legal process; (iii) to protect the rights, privacy, property, interests, or safety of our company or our affiliates, customers, business partners, employees, or the general public; (iv) to pursue available remedies or limit the damages; (v) to enforce the Terms of Use and Terms of Service; and (vi) to respond to an emergency.

Personal Data (98.0%):

GiftYa never publicly discloses any Personal Information related to financial or payment activities or any government identification numbers.

Organisational Measure (74.5%), Processing (68.4%):

How We Protect and Store Information GiftYa takes precautions intended to help protect information that we collect and store; however, any transmission to us is at your own risk, and we expect that you will use appropriate security measures to protect your information.

Organisational Measure (81.5%):

Unauthorized access to password-protected or secure areas is prohibited and may lead to criminal prosecution.

Organisational Measure (86.5%):

We may suspend your use of all or part of the Services without notice if we suspect or detect any breach of security.

Retention (88.6%):

We retain information for as long as necessary to fulfill the purposes for which you provided the information, to comply with legal obligations, to resolve disputes, to enforce agreements, and similar essential purposes.

Third Party (78.9%):

Linking to Other Sites GiftYa may provide links to websites operated by unrelated third parties, such as companies that provide services for us or in which we think you may have an interest.

Processing (96.8%):

We encourage you to read the privacy policies of every website or service that you visit to understand how your Personal Information is processed.

Consent (80.6%):

Not all browsers offer a DNT option and DNT signals are not yet uniform.

Consent (93.5%), Data Subject (70.5%):

Integrating Social Networking Services You may have the option of posting your Services activities to social media platforms when you access content through the Services (for example, you may post to Facebook that you performed an activity on the Service); you acknowledge that if you choose to use this feature, your friends, followers, and subscribers on any social media platforms you have enabled will be able to view such activity.

Processing (94.7%):

All Unsolicited Information shall be deemed to be non-confidential and GiftYa shall be free to reproduce, use, disclose, and distribute such Unsolicited Information to others without limitation or attribution.

Consent (97.3%), Processing (89.5%):

Your Rights Revoking Consent to SMS Notifications: To the extent you access the Service through a mobile device, and by acknowledging our Terms of Service, you consent to our communicating with you on your mobile device, including through the use of an automatic telephone dialing system or a prerecorded or artificial voice, by SMS, MMS, text message or other electronic means and that certain information about your usage of the products and features may be communicated to us.

Personal Data (82.5%):

We may collect and store information (including Personal Information) on your Device through

browser web storage (including HTML 5) and web application data caches.

Art. 16 Right to rectification (67.0%), Personal Data (74.4%):

Note that even if you opt out, you may still receive transactional e-mails from us (e.g., e-mails related to the completion of your registration, correction of user data, password reset requests, reminder e-mails that you have requested, and any other similar communications essential to your transactions on or made through the services).

Art. 15 Right to access by the data subject (71.7%), Processing (86.0%), Right (91.3%):

Additional Data Privacy Rights: For Consumers in California (and Certain Additional States): California law, and the law in certain additional states, give you certain rights, including some or all of the following: a right to be notified of (and to request more information about) our data collection practices; the categories of data we process; the categories of third parties with whom data is shared; the right to request disclosure (up to a certain limited number of times per year) of the personal information we have about you or have had within the last 12 months; the right to delete that information (under certain circumstances); the right to know if your data is being sold; the right to know what personal information is being sold and to opt-out of such sales (if applicable); the right to receive a copy of your information in a portable form so that you may transfer it to other services; and, the right to not be discriminated against for exercising these rights.

Art. 18 Right to restriction of processing (64.1%), Processing (85.3%):

Access, Correction, Portability, and Deletion: You have the right to access, correct (rectify), or delete (erase) your personal information held by us (be forgotten), or may ask for a restriction of processing.

Processing (64.9%):

You may also have the right to ask for an overview or copy of your personal information or to request that certain of your personal information be exported in a format so that you may take your data to another provider where technically feasible (data portability).

Personal Data (97.5%):

Exercising Your Rights: To exercise the access, correction, portability, deletion or opt-out rights described above, please submit a verifiable consumer request to us by either: Calling us at 866-352-9437 Online: www.giftya.com Emailing: support@giftya.com Mailing: 495 Mansfield Avenue, Pittsburgh, PA 15205 Only you or a person legally authorized to act on your behalf may make a verifiable consumer request related to your personal information.

Required Purpose (78.1%):

The verifiable consumer request must: Provide sufficient information that allows us reasonably to

verify you are the person or a legally authorized representative of the person on whom we collected personal information. Describe your request with sufficient detail that allows us to properly understand, evaluate, and respond to it.

Organisational Measure (73.5%):

If we cannot fulfill your request, we will inform you about why we cannot comply with your request.

Right (68.5%):

Non-Discrimination: We will not discriminate against you for exercising any of your rights.

Legal Basis (93.7%):

Unless permitted by applicable law, we will not deny you goods or services; charge you different prices or rates for goods or services; provide you a different level or quality of goods or services; suggest that you may receive a different price or rate for goods or services or a different level or quality of goods or services.

Legal Basis (87.7%), Processing (87.3%), Required Purpose (92.5%):

Children's Online Privacy Protection Act, if we learn that we have received any information directly from a child under age 13 without his or her parents' verified consent, we will use that information only to respond directly to that child (or his or her parent or legal guardian) to inform the child that he or she cannot use the Services and subsequently will delete that information.

Organisational Measure (69.7%):

If we make changes to this privacy Statement, we will post the changes on this page and revise the Updated date.

Organisational Measure (97.0%):

If we make material changes to the way we use Personal Information, we will make additional efforts to notify you, for example by posting a notice about the changes prominently on the Services in advance.

Organisational Measure (98.3%):

Where required by applicable law, we will obtain your consent or give you an opportunity to opt out of such changes.

Legal Basis (68.2%), Organisational Measure (72.5%):

Any changes will become effective when we post the amended Privacy Statement.